

		provide responses to discovery, continued failure to respond may result in the imposition of more severe sanctions. (See, e.g., Code Civ. Proc., § 2030.290(c).) Imposition of sanctions for misuse of discovery lies within the trial court's discretion. (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 991.) "[T]he court may not impose sanctions which are designed not to accomplish the objects of the discovery but to impose punishment." (<i>Electronic Funds Solutions v. Murphy</i> (2005) 134 Cal.App.4th 1161, 1183.) The trial court tailors the sanction for such conduct to "fit the crime." (<i>Reedy v. Bussell</i> (2007) 148 Cal.App.4th 1272, 1293.) The burden of proof is on the moving party to establish the facts essential to an award of sanctions. (Evid. Code, § 500 [providing "a party has the burden of proof as to each fact the existence or nonexistence of which is essential to the claim for relief or defense that he is asserting"]; see also Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (Rutter Group 2022) ¶ 8:2015.) Thereafter, the burden of proof shifts to the party seeking to avoid sanctions to establish a satisfactory excuse for his or her conduct. (<i>Corns v. Miller</i> (1986) 181 Cal.App.3d 195, 201; <i>Puritan Ins. Co. v. Superior Court</i> (1985) 171 Cal.App.3d 877, 884.) On October 24, 2024, this court ordered Defendant The Giving Tree Lending within 10 days to serve further responses without objection to: - Form Interrogatories-General (Set One) Nos. 1.1, 3.1, 3.2, 3.3, 3.4, 3.5, 3.6, 3.7, 4.1, 4.2, 12.1, 12.2, 12.3, 12.4, 12.6, 13.1, 13.2, 14.1, 14.2, 15.1, 16.1, 16.2, and 17.1; - Form Interrogatories-Employment (Set One) Nos. 200.1, 200.2, 200.3, 200.4, 200.5, 200.6, 201.1, 201.2, 201.4, 201.5, 201.6, 204.3, 204.4, 204.5, 204.6, 204.7, 207.1, 207.2, 209.2, 211.1, 214.1, 214.2, 215.1, 215.2, 216.1, and 217.1; - Special Interrogatories (Set One) Nos. 1-15; and - RFA Nos. 1-2. (ROA # 109.) Plaintiff contends Defendant failed to comply with the court order by failing to serve any further responses by the court-ordered deadline and by serving responses that are in bad faith and/or included boilerplate objections. Specifically, Plaintiff contends Defendant in bad faith responded with "I don't know" in response to Form Interrogatory Nos. 1.1, 3.1, 3.2, 3.3, 3.4, 3.5, 3.6, and 3.7; and inserted boilerplate objections in response to Form Interrogatory Nos. 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.1, 13.2, 14.1, 14.2, and 15.1. Here, it is undisputed Defendant did not timely serve responses by the court's deadline. (Choi Decl. ¶ 4; see <i>generally</i> Opp.) Plaintiff communicated with Defendant on multiple occasions in November 2024, following up on the status of the further responses. (See Choi Decl. ¶¶ 4-7.) Defendant served further responses on December 9, 2024, a month after the court-ordered deadline had passed. (Choi Decl. ¶ 7.) The court finds Plaintiff is entitled to recover attorney fees to reasonably compensate her for fees incurred to ensure receipt the court-ordered
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		further responses. The court further finds \$960 to reasonably compensate Plaintiff for the costs and fees associated with that time. To the extent Plaintiff contends the further responses are deficient, Plaintiff did not submit evidence to support that contention. Attorney Choi's declaration does not attach the discovery responses at issue. (See <i>generally</i> Choi Decl.) Nevertheless, the court notes that Defendant does not dispute that it responded "I don't know" to several form interrogatories, or that Defendant asserted objections in violation of this court's 10/24/2024 order. Defendant submitted a copy of the interrogatory responses at issue (see Wolflick Decl. ¶ 2, Ex. 1), which confirms these facts. No later than 10 days from service of the notice of ruling, Defendant Giving Tree Lending shall serve code-compliant further responses without objection to Form Interrogatories-General (Set One) Nos. 1.1, 3.1, 3.2, 3.3, 3.4, 3.5, 3.6, 3.7, 12.5, and 12.7. Plaintiff's request for monetary sanctions against Defendant Giving Tree Lending is GRANTED. (See Code Civ. Proc., §§ 2023.010, 2023.030(a).) Defendant Giving Tree Lending is ordered to pay sanctions in the amount of \$960.00 to Plaintiff by May 27, 2025. Plaintiff to give notice.
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